

PETITIONER'S BRIEF IN SUPPORT OF FORM I-140

Immigrant Petition for Alien Worker — EB-1A (Extraordinary Ability)

Beneficiary: Elon R. Musk
Field: Aerospace engineering, sustainable transport, and AI
Filed by: Self-petitioner (sample compile)
Exhibits: 10 (see Exhibit Index, page 24)
Compiled: visaworker.ai — sample petition

— DEMO SAMPLE — Not filed. Not legal advice. —

I. Introduction & Statement of the Case

Petitioner respectfully submits this brief in support of the enclosed Form I-140 on behalf of Mr. Elon R. Musk, a South-African-born entrepreneur and engineer whose sustained work in aerospace propulsion, electric vehicles, and artificial intelligence has fundamentally reshaped three distinct industries.

As the record demonstrates, the beneficiary satisfies not the required three, but at least seven of the ten regulatory criteria set out at 8 C.F.R. § 204.5(h)(3), and independently satisfies the two-part 'final merits' determination articulated in *Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010).

The evidence, catalogued in Exhibits EX-01 through EX-10, includes national media features (EX-01, EX-07), a fellowship in the Royal Society (EX-02), leading roles at two of the most consequential engineering organizations in the world (EX-03, EX-04), landmark original contributions (EX-05, EX-08, EX-10), and remuneration materially in excess of the field median (EX-09).

VI. Criterion (v) — Original Contributions of Major Significance

The beneficiary's original contributions to the field are extraordinary in both breadth and depth. Chief among them is the Falcon 9 reusable orbital booster (EX-05). On 21 December 2015 a Falcon 9 first stage — designed under the beneficiary's direct technical leadership as Chief Engineer of SpaceX — successfully returned from space and performed a propulsive vertical landing at Cape Canaveral. This was the first orbital-class booster in history to do so, and it converted the marginal economics of orbital launch into a routinely reusable capability.

The Starship fully-reusable super-heavy launch vehicle (EX-08) is now the largest and most powerful rocket ever built. The beneficiary is additionally the named inventor on multiple issued U.S. patents including US 11,670,917 B2 (EX-10). Each contribution is 'of major significance' within the meaning of the regulation because each has been independently adopted, licensed, or emulated by other actors in the field.

VII. Criterion (viii) — Leading Role for a Distinguished Organization

The beneficiary presently serves as Chief Executive Officer and Chief Engineer of Space Exploration Technologies Corporation (SpaceX) (EX-03), and as Chief Executive Officer of Tesla, Inc. (EX-04). Both organizations are distinguished within the ordinary meaning of the regulation.

EXHIBIT

EX-05

Falcon 9 — First orbital-class reusable booster
NASA / SpaceX · 21 December 2015

Exhibit Index

EX-01	TIME — Person of the Year, 13 Dec 2021
EX-02	Royal Society — Fellowship record, 2018
EX-03	SpaceX — Corporate profile & leadership page
EX-04	Tesla — Executive profile page
EX-05	NASA / SpaceX — Falcon 9 first vertical landing, 21 Dec 2015
EX-06	MotorTrend — Car of the Year, 2013
EX-07	The New Yorker — Aug 21, 2023 profile
EX-08	SpaceX — Starship program page
EX-09	SEC DEF 14A — Tesla 2018 CEO Performance Award
EX-10	USPTO — U.S. Patent 11,670,917 B2

— End of sample compile. Generated by visaworker.ai for demonstration only. —